

HOUSE No. 4437

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas W. Moakley and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the regulation of nutrient management and fertilizer in the town of Nantucket.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>7/30/2025</i>

HOUSE No. 4437

By Representative Moakley of Falmouth and Senator Cyr, a joint petition (accompanied by bill, House, No. 4437) of Thomas W. Moakley (by vote of the town) for legislation relative to the regulation of nutrient management and fertilizer in the town of Nantucket. Agriculture and Fisheries. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2437 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the regulation of nutrient management and fertilizer in the town of Nantucket.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of sections 9 and 10 of chapter 262 of the
2 Acts of 2012 or any other general or special law, the deadline for the adoption of any rule,
3 regulation, or by-law relative to nutrient management and fertilizer guidelines adopted in the
4 Town of Nantucket under chapter 561 of the acts of 1973, shall be extended for a period of two
5 years after the effective date of this act. Such rule, regulation or bylaw shall not be less
6 restrictive than regulations adopted by the department of agricultural resources under section 1 of
7 chapter 262 and shall be done in conjunction with the University of Massachusetts Amherst
8 Extension to ensure any regulations relative to plant nutrients are consistent with the program's
9 published information, educational materials and other public outreach programs relative to
10 nutrient management and fertilizer guidelines.

11 SECTION 2. The act shall take effect upon passage.